



IFDC RESOURCE • NO. 2

IFDC LEGAL BRIEF

SRI LANKAN LAW AND THE REPORTING OF CHILDREN IN THE MEDIA

*A journalist's guide to the Penal Code, the Obscene Publications Ordinance, and the
Harmful Publications Act*

A PUBLICATION OF THE INTERNATIONAL FOUNDATION FOR DIGITAL CHILD

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SRI LANKAN LAW AND THE REPORTING OF CHILDREN IN THE MEDIA

A journalist's guide to the Penal Code, the Obscene Publications Ordinance, and the Harmful Publications Act

Sri Lanka's legal framework already places real limits on what media can publish about children and about victims of sexual crime. Journalists and editors who understand these laws are better placed to avoid legal exposure and, more importantly, to avoid causing further harm to a child. This guide summarises the key statutes journalists in Sri Lanka should know.

1. The Penal Code: Obscene Material Offences

Sections 285 to 287 of the Penal Code criminalise the publication, sale, distribution, importing, printing, possession for sale, or public exhibition of obscene books, images, drawings, photographs or recordings. Anyone convicted under these sections faces imprisonment of up to three months, a fine, or both. A related provision, Section 287, similarly penalises the public performance or utterance of obscene material.

Duty on Photo and Film Developers

Section 286(A), inserted by the Penal Code (Amendment) Act No. 29 of 1998, places a specific duty on anyone who develops photographs or film: if they discover that material brought to them for processing is an indecent or obscene image of a child, they must immediately report it to the nearest police station. This obligation — extended in practice to digital labs, printing shops and, increasingly, cloud and social media platforms handling user content — exists precisely to give processors a legal duty to flag exploitative material rather than simply return it to the customer.

Naming Victims of Sexual Offences

Section 365(C), introduced by the Penal Code (Amendment) Act No. 22 of 1995, makes it a criminal offence to print or publish the name of, or any detail that could reveal the identity of, a person against whom a sexual assault or rape has been committed. A conviction carries a prison term of up to two years, a fine, or both.

EXCEPTION

This restriction does not apply where the investigating police officer, acting in good faith during an active investigation, formally requests the media to publish specific identifying details — for example, to trace a missing child or appeal for witnesses.

In effect, Section 365(C) sits alongside the Editors' Guild of Sri Lanka's own Code of Professional Practice (enforced by the Press Complaints Commission of Sri Lanka), which independently bars naming victims of sex crimes and identifying young suspects under 16 with no prior record — giving Sri Lankan newsrooms both a statutory and a self-regulatory reason not to publish identifying details of child victims.

2. The Obscene Publications Ordinance

This Ordinance criminalises trading in, producing, possessing for distribution, importing, exporting, circulating, advertising or otherwise dealing in obscene writings, drawings, prints, photographs, films, video recordings or similar material. It also criminalises advertising where or how such material can be obtained. Conviction carries a fine of Rs. 1,000 and up to three months' imprisonment, or both.

Although the monetary penalty is dated, the Ordinance remains part of the framework prosecutors can draw on alongside the newer Penal Code provisions, particularly for cases involving the circulation of obscene material featuring children.

3. Children and Young Persons (Harmful Publications) Act, No. 48 of 1956

This Act targets publications likely to corrupt children or young people through their portrayal of crime, violence, cruelty, or content of a repulsive or horrifying nature. It defines a ‘child’ as a person under 12 and a ‘young person’ as anyone under 16.

- It is an offence to print, publish, sell, or hire out a publication caught by the Act.
- It is also an offence to possess such a publication for the purpose of selling or hiring it out.

For newsrooms, this Act is a reminder that graphic or gratuitously violent depictions of crime — even where the subject matter itself is legitimate news — can cross into territory the law treats as harmful to the young readers or viewers who may encounter it.

What This Means for Sri Lankan Newsrooms

1. Treat a child victim's identity — name, photograph, school, address, or any detail that narrows down who they are — as legally protected information, not just an ethical preference.
2. Route any request from police to publish identifying details through your editor, and keep a record that the request came from an investigating officer acting in good faith.
3. If your outlet is developing, hosting, printing or moderating user-submitted images or footage, understand that discovering suspected child sexual abuse material creates a legal duty to report it to the police — not to sit on it, publish it, or quietly delete it.
4. When covering crime involving children, ask whether graphic detail is necessary to the story before including it — the Harmful Publications Act exists precisely because some detail serves sensationalism rather than public understanding.

WHERE TO GET HELP

The National Child Protection Authority (NCPA) operates the toll-free, 24-hour trilingual Childline on 1929, and can be reached by email at ncpa@childprotection.gov.lk. Journalists uncertain whether a report crosses a legal line, or who need to report suspected exploitation material, can consult the NCPA or the Press Complaints Commission of Sri Lanka (PCCSL) for guidance.

Prepared by the International Foundation for Digital Child (IFDC) as a plain-language summary of Sri Lankan statute for working journalists. This is general guidance, not legal advice — newsrooms should consult qualified legal counsel on specific cases. © IFDC — www.ifdchild.org.

GET HELP · REPORT A CONCERN · KNOW YOUR RESOURCES

Sri Lankan Bodies Every Journalist Covering Children Should Know

EDITORS' GUILD OF SRI LANKA

No. 96, Kirula Road, Colombo 05, Sri Lanka

Self-regulatory body for editors — Code of Professional Practice

PRESS COMPLAINTS COMMISSION OF SRI LANKA (PCCSL)

96 Bernard Soysa Mawatha (Kirula Road), Colombo 00500

Web: www.pccsl.lk

Independent Dispute Resolution Council for complaints against the press

HUMAN RIGHTS COMMISSION OF SRI LANKA (HRCSL)

No. 14, R. A. De Mel Mawatha, Colombo 04

Tel: 011 250 5580 / 011 250 5581 / 011 250 5582 · Hotline: 1996

Web: www.hrcsl.lk

LEGAL AID COMMISSION OF SRI LANKA

No. 129, Hulftsdorp Street, Colombo 12

Tel: +94 11 243 3618 / +94 11 533 5329 / +94 11 533 5281

Email: legalaids@sltnet.lk · Web: www.legalaids.gov.lk

Free legal advice and court representation for eligible persons, including in child-related matters

NATIONAL CHILD PROTECTION AUTHORITY (NCPA)

No. 330, Thalawathugoda Road, Madiwela, Sri Lanka

Childline: 1929 (toll-free, 24 hours, trilingual) · Tel: +94 11 277 8911–14

Email: ncpa@childprotection.gov.lk · Web: www.childprotection.gov.lk

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